

# PLAINTIFF'S ARBITRATION BRIEF — DRAFT v3

AAA Case No. 01-26-0004-4471  
Prepared by: Case Management Division (for  
attorney review)

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## I. LIABILITY

Defendant Smith was cited for Failure to Yield and Disregarding a Traffic Control Device while operating Apex's commercial F-150 in the course of his employment. Plaintiff was turning on a protected green arrow.

## II. INJURIES

12cm facial laceration (42 sutures, permanent hypertrophic scarring); L4-L5 herniation confirmed by MRI (03/15/2026) and EMG (04/20/2026, active L5 denervation); microdiscectomy 05/12/2026; permanent 5% WPI (Dr. Neil Ron, 06/15/2026); permanent light-duty restrictions.

## III. ANTICIPATED DEFENSES

[TO BE COMPLETED — pre-existing 2018 strain; 14-day treatment gap; lien / collateral source arguments]

## IV. DAMAGES

[TO BE COMPLETED — verified ledger must be attached; see Tab 4]

Attorney review note: Sections III and IV are incomplete. Do not file until the Case Manager's audit is complete.

DRAFT